

CHAPTER 4.

An Act to provide for the increase of certain fees and the imposition of certain new fees in respect of various services, and for purposes connected therewith. [26th April 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The provisions of the Merchant Shipping Act, 1894, and of the Merchant Shipping (Mercantile Marine Fund) Act, 1898, specified in the first column of Part I. of the First Schedule to this Act so far as they limit the amount of fees chargeable under those Acts or grant exemptions from any such fees, shall have effect subject to the amendments mentioned in the third column of that Part of the Schedule:

Increase of certain fees under Merchant Shipping Acts.
57 & 58 Vict. c. 60.
61 & 62 Vict. c. 44.

Provided that no fees shall be payable under section three of the Merchant Shipping (Mercantile Marine Fund) Act, 1898, in respect of vessels not exceeding ten tons gross register employed solely in fishing.

(2) For the Schedules of the said Acts mentioned in Part II. of the First Schedule to this Act there shall be substituted the Schedules by that Part directed to be substituted therefor.

2.—(1) Where—

- (a) under section nineteen of the Merchant Shipping Act, 1894, a Registrar of Shipping endorses and signs on the certificate of registry of a ship a memorandum of the change of the master; or
- (b) a certificate of service is granted in pursuance of section ninety-nine of the Merchant Shipping Act, 1894; or
- (c) an indenture of apprenticeship to the sea service is recorded by a Superintendent or by the Registrar-General of Shipping and Seamen;

Charge of new fees for certain services under the Merchant Shipping Acts.

there shall be payable such fees as the Board of Trade may determine not exceeding those specified in Part I. of the Second Schedule to this Act.

(2) There shall be payable upon all engagements and discharges of seamen effected in the presence of a superintendent under section one hundred and fifteen, subsection (2) of section one hundred and sixteen, and section one hundred and twenty-seven of the Merchant Shipping Act, 1894, such fees as may be fixed by the Board of Trade not exceeding those specified in Part II. of the Second Schedule to this Act, and the superintendent may refuse to proceed with any engagement or discharge unless the fees payable have been first paid by the master or owner of the ship.

(3) On the inspection of a ship—

(a) under section four hundred and thirty-one of the Merchant Shipping Act, 1894, either during the construction of the ship or otherwise, for the purpose of seeing that the ship is properly provided, in accordance with the provisions of the Merchant Shipping Acts, 1894 to 1921, or any rules made thereunder, with life-saving appliances; or

9 & 10
Geo. 5. c. 38.

(b) under section one of the Merchant Shipping (Wireless Telegraphy) Act, 1919, for the purpose of seeing that the ship is properly provided, in accordance with the rules made under that Act, with a wireless telegraph installation and certified operators and watchers;

there shall be paid in respect of the inspection such fees as the Board of Trade may determine, not exceeding those specified in Part III. of the Second Schedule to this Act.

6 Edw. 7.
c. 48.

(4) Where under section two hundred and six of the Merchant Shipping Act, 1894, or section twenty-six of the Merchant Shipping Act, 1906, any provisions are inspected either before shipment or on board a ship, there shall be payable in respect of such inspection such fees as the Board of Trade may determine not exceeding those specified in Part IV. of the Second Schedule to this Act; but it shall not be obligatory that such an inspection should be made, and accordingly in subsection (1) of the first mentioned section for the words “ shall be

inspected" there shall be substituted the words "may be inspected," and for the words "shall certify" there shall be substituted the words "may certify"; and subsection (3) of the same section shall be repealed:

Provided that, where provisions which have been inspected and sealed by an inspecting officer are found on board any ship within such time as may be prescribed by the Board of Trade as the time for which the seals are to hold good, no fee shall be charged for the verification of the seals.

3. The amount of the fees to be charged under the Merchant Shipping Acts, 1894 to 1921, as amended by this Act shall be so fixed that the amount estimated by the Board of Trade to be produced thereby in any year shall not exceed one-half of the amount certified by the Board of Trade to be the aggregate estimated cost in that year of the administration of the services in respect of which the fees are payable.

Limitation on fees to be fixed under Merchant Shipping Acts.

4. Twenty shillings shall be substituted for five shillings as the maximum fee payable under section three of the Petroleum Act, 1879, on the verification of apparatus for testing petroleum.

Fees under 42 & 43 Vict c. 47, s. 3.

5.—(1) There shall be payable for any search of the index kept under section twelve of the Registration of Business Names Act, 1916, such fee as may be prescribed not exceeding one shilling for each name in respect of which a search is made, and the search fee hereby authorised shall be payable in addition to any fee chargeable under section sixteen of that Act for the inspection of documents.

Fees in respect of registration of business names. 6 & 7 Geo. 5. c. 58.

(2) Section sixteen of the said Act (which prescribes, amongst other things, the maximum fees payable for certificates of registration and certified copies of, or extracts from, registered statements) shall have effect as though for the words "sixpence for each folio of "seventy-two words, or in Scotland for each sheet of "two hundred words, of the entry, copy, or extract," there were substituted the words "one shilling for any other entry, copy, or extract."

(3) One pound shall be substituted for five shillings as the maximum fee payable under section seventeen of the said Act in respect of the registration of any one statement.

Fees under
the Weights
and
Measures
Acts.

6. The Board of Trade shall be entitled to charge on the comparison and verification of local standards and other standards for the use of local authorities or their officers such fees as they may fix with the approval of the Treasury and after consultation with such associations of local authorities as appear to them to be concerned.

Fees for
licences to
remove
bodies after
burial.
20 & 21 Vict.
c. 81.

7.—(1) Where a Secretary of State issues a licence under section twenty-five of the Burial Act, 1857, for the removal of any body, or the remains of any body, which has been interred in any place of burial, there shall be payable in respect of the licence such fee, not exceeding two pounds, as the Secretary of State, with the consent of the Treasury, may prescribe.

(2) Where in connexion with the removal of any such body or remains, any officer of any local authority, with the consent of the authority and in pursuance of any conditions attached to the licence by the Secretary of State, performs any duties, it shall be lawful for the Secretary of State to pay to the local authority any part of the fee received by him in connexion with such removal.

Power to fix
fees for
matters
done by
officers of
Foreign
Office in
Great
Britain.
54 & 55 Vict.
c. 36.

8.—(1) Where the fees to be charged in respect of any matter or thing done by a consular officer have been fixed by Order in Council under section two of the Consular Salaries and Fees Act, 1891, His Majesty may by Order in Council direct that fees of like amount shall be charged in respect of any similar matter or thing done by a public officer in Great Britain acting under the authority of a Secretary of State.

(2) All such fees shall be levied, accounted for and applied in accordance with regulations to be made by a Secretary of State, with the approval of the Treasury.

Fees for
holding
inquiries.

9. Where under any Act of Parliament a government department is authorised or required to hold an inquiry, and the costs of the inquiry are made payable by any local authority or other person, or in such manner and by such persons as the department or the officer holding the inquiry may direct, then, notwithstanding anything in such Act, such costs may include a fee in respect of the services of any officer of the department engaged in the inquiry not exceeding five guineas a day.

10. The enactments mentioned in the Third Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule. Repeals

11.—(1) This Act may be cited as the Fees (Increase) Act, 1923. Short title,
construc-
tion and
extent.

(2) This Act, so far as it amends the Merchant Shipping Acts, 1894 to 1921, shall be construed as one with those Acts, and those Acts and this Act so far as it amends those Acts may be cited together as the Merchant Shipping Acts, 1894 to 1923.

(3) This Act, so far as it relates to matters with respect to which the Parliament of Northern Ireland has not power to make laws, shall extend to Northern Ireland.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

PART I.

AMENDMENTS OF PROVISIONS OF MERCHANT SHIPPING ACTS RELATING TO FEES.

Enactment amended.	Services in respect of which Fees chargeable.	Amendments.
Merchant Shipping Act, 1894 (57 & 58 Vict. c. 60) :—		
S. 64 (1)	Inspection of register book.	For the words “ not exceeding one shilling ” there shall be substituted the words “ not exceeding two shillings.”
S. 77 (2)	Remeasurement under Rule I. of ships previously measured under Rule II.	For the words “ not exceeding seven shillings and sixpence for each transverse section ” there shall be substituted the words “ not exceeding that specified in the Third Schedule to this Act.”
S. 126 (2)	Granting of Certificate of Service for A.B. rating.	For the words “ not exceeding sixpence ” there shall be substituted the words “ not exceeding one shilling.”

Enactment amended.	Services in respect of which Fees chargeable.	Amendments.
S. 306 (2)	Medical inspection of steerage passengers.	For the words "not exceeding twenty shillings for every hundred persons" there shall be substituted the words "not exceeding three pounds for the first hundred persons or fraction of a hundred persons inspected, and one pound for each additional hundred persons."
S. 695 (2)	Supply of copies of certified documents.	For the words "not exceeding fourpence" there shall be substituted the words "not exceeding one shilling," and for the words "on the payment of one shilling" there shall be substituted the words "on the payment of five shillings."
Sixth Schedule : Paras. (6) & (7).	Inspection of accommodation of crew.	For the words "shall not exceed ten shillings" there shall be substituted the words "shall not exceed twenty shillings," and for the words "shall not exceed one pound" there shall be substituted the words "shall not exceed four pounds."
Sixteenth Schedule	Inspection of lights and fog signals.	For the figures "£0 10s. 0d." there shall be substituted the figures "£1 0s. 0d.," and for the words "shall not exceed one pound" there shall be substituted the words "shall not exceed four pounds."
Merchant Shipping (Mercantile Marine Fund) Act, 1898 (61 & 62 Vict. c. 44) :— S. 3	Registration transfer and mortgage of ships.	For the words "solely employed in fishing or sailing ships of under one hundred tons" there shall be substituted the words "not exceeding ten tons gross register employed solely in fishing."

PART II.

SCHEDULES TO BE SUBSTITUTED FOR SCHEDULES PRE-
SCRIBING FEES UNDER THE MERCHANT SHIPPING ACTS.

For the Third Schedule to the Merchant Shipping Act, 1894,
the following Schedule shall be substituted :—

THIRD SCHEDULE.

TABLE OF MAXIMUM FEES TO BE PAID FOR THE
MEASUREMENT OF MERCHANT SHIPS.

	£	s.	d.
Vessels of 50 tons gross and under - - -	2	0	0
Vessels of over 50 tons gross and under 100 tons -	4	0	0
For each additional 100 tons or part of 100 tons above 100 up to 1,000 - - - - -	2	0	0
For each additional 100 tons or part of 100 tons above 1,000 up to 10,000 - - - - -	1	0	0
For each additional 100 tons or part of 100 tons above 10,000 - - - - -	0	10	0

NINTH SCHEDULE.

PART I.

Maximum Fees to be Paid for Passenger Steamer's Certificate.

	£	s.	d.
For a steamer not exceeding 50 ton gross - -	4	0	0
For a steamer exceeding 50 and not exceeding 100 tons gross - - - - -	8	0	0
For a steamer exceeding 100 and not exceeding 300 tons gross - - - - -	12	0	0
For a steamer exceeding 300 and not exceeding 600 tons gross - - - - -	15	0	0
And for every additional 300 tons or part of 300 tons above 600 an additional - - -	3	0	0

PART II.

Maximum Fees to be Paid for Survey of Emigrant Ships.

	£	s.	d.
(a) For ships holding valid passenger certificates :			
For an ordinary survey of the ship and of her equipment, stores, &c. - - -	12	0	0
For a special survey - - - - -	20	0	0
(b) For ships not holding valid passenger cer- tificates an additional fee not exceeding that specified in the scale in Part I. of this Schedule - - - - -			

For the First Schedule to the Merchant Shipping (Mercantile Marine Fund) Act, 1898, the following Schedule shall be substituted :—

FIRST SCHEDULE.

TABLE OF MAXIMUM FEES TO BE PAID ON THE REGISTRATION, TRANSFER AND MORTGAGE OF SHIPS.

1. *Registration.*

1. On initial Registry :—	£	s.	d.
Vessels not exceeding 25 tons gross - -	2	0	0
Vessels exceeding 25 and not exceeding 50 tons gross - - - - -	2	10	0
Vessels exceeding 50 and not exceeding 100 tons gross - - - - -	3	0	0
Vessels exceeding 100 and not exceeding 200 tons gross - - - - -	4	0	0

With £1 for every additional 100 tons or fraction of a 100.

2. *Transfer and Mortgage.*

2. On transfer, transmission, registry anew, transfer of registry, mortgage, and transfer of mortgage :	£	s.	d.
According to the gross tonnage represented by the ships or shares of ships transferred, &c. (e.g., the transfer of a 1/64 share in a ship of 6,400 tons to be reckoned as the transfer of 100 tons) :			
Not exceeding 10 tons - - - - -	0	5	0
10 tons and not exceeding 20 tons - -	0	10	0
20 " " " 30 " - -	0	15	0
30 " " " 40 " - -	1	0	0
40 " " " 50 " - -	1	5	0
50 " " " 75 " - -	1	10	0
75 " " " 100 " - -	1	15	0
100 " " " 125 " - -	2	0	0
and a further fee of 5s. for every additional 50 tons, or part of 50 tons, up to 500 tons, after which for every 100 tons, or part of 100 tons -	0	5	0

SECOND SCHEDULE.

Section 2.

NEW MAXIMUM FEES.

PART I.

Certificates and Records.

	£	s.	d.
For endorsing and signing on the certificate of registry of a ship a memorandum of the change of the master - - - - -	0	10	0
For a certificate of service granted in pursuance of section 99 of the Merchant Shipping Act, 1894 - - - - -	1	0	0
For recording an indenture of apprenticeship to the sea service - - - - -	0	2	6

PART II.

Engagement and Discharge of Seamen.

For every seaman engaged before a superintendent	0	1	6
For every seaman discharged before a superintendent - - - - -	0	1	6

PART III.

Inspection of Life-saving Appliances and Wireless Telegraphy Equipment.

- For inspection of life-saving appliances on a vessel on or before first registry or re-registry *2l. for each lifeboat.*
- For subsequent inspection at the request of the master or owner or in the case of a vessel found to have defective or deficient life-saving appliances - - - - - *1l. per visit with a maximum of 4l.*
- For inspection of a vessel which is found to be not properly provided with wireless telegraphy installation or with certified wireless operators and watchers ; - - - *1l. per visit with a maximum of 4l.*

PART IV.

Inspection of Provisions.

The following percentage of the market value of the provisions inspected :—

- If the provisions are inspected in bulk at a warehouse - - - - - *2 per cent.*
- If the provisions are inspected on a ship or alongside a ship - - - - - *4 per cent.*

Section 10.

THIRD SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
41 & 42 Vict. c. 49	The Weights and Measures Act, 1878.	In section thirty-seven the words "nor shall any fee be payable on the verification or re-verification of any local standard."
52 & 53 Vict. c. 21	The Weights and Measures Act, 1889.	In section eight the words "not being standards for the use of a local authority or their officers and".
57 & 58 Vict. c. 60	The Merchant Shipping Act, 1894.	Subsection (3) of section two hundred and six. The Third Schedule. The Ninth Schedule.
61 & 62 Vict. c. 44	The Merchant Shipping (Mercantile Marine Fund) Act, 1898.	The First Schedule.

CHAPTER 5.

An Act to amend the Dangerous Drugs Act, 1920, and section seventeen of the Pharmacy Act, 1868, and to prescribe the method of calculating percentages in liquid preparations for the purpose of the Poisons and Pharmacy Act, 1908, and the Dangerous Drugs Act, 1920.
[17th May 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The following subsection shall be inserted in section ten of the Dangerous Drugs Act, 1920, after subsection (1) thereof:—

"(1A) If a justice of the peace (or in Scotland either a justice of the peace or a sheriff) is

Amendment
of s. 10 of
Dangerous
Drugs Act,
1920.
10 & 11
Geo. 5. c. 46.